

1.

CASE #	CASE NAME	HEARING NAME
CVRI2501758	GILBERT VS FCA US LLC	MOTION TO COMPEL DEFENDANT'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS NOS. 1, 2, 3, 4, 5, 6, 7, 8, 9,11,12,13,14

Tentative Ruling: Plaintiff's Motion to Compel Further Responses are denied, as to #'s 12 and 14, it is moot; as to the remainder, for failing to meet and confer.

A party may file a motion compelling a further response to RFPs if it finds that a response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (CCP § 2031.310(a).) In a motion to compel a further response as to document requests, the moving party must state facts demonstrating good cause justifying the discovery sought by demonstrating relevance and specific facts justifying discovery. (CCP §2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production "is met simply by a fact-specific showing of relevance." (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

However, before filing a motion to compel a further response to RFPs, the moving party must engage in a reasonable and good faith attempt to resolve informally each issue set forth in the motion and must file an appropriate declaration with the motion. (CCP §§ 2016.040 & 2031.310(b).) The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. (*Stewart v. Colonial W. Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016–17.)

Here, Plaintiff served Defendant with her first set of Request for Production of Documents on January 21, 2026. (Declaration of Astrid Souto ("Souto Decl."), ¶5, Ex.1.) On February 24, 2026, Plaintiff received Defendant's e-served verified discovery responses. (Id., ¶6, Ex. 2.)

On March 2, 2026, Plaintiff sent Defendant a meet and confer letter with legal authorities detailing various deficiencies with Defendant's discovery responses, including those at issue in this Motion. Plaintiff asked Defendant to provide further responses to select discovery items that were not responsive and/or incomplete within seven days of the date of the letter and to advise Plaintiff if additional time was needed, which would be agreeable to Plaintiff if Defendant provided a reciprocal extension on Plaintiff's motion filing deadline. (Id. ¶7, Ex. 3.) On March 10, 2026, Plaintiff received Defendant's e-served, verified supplemental discovery responses to Plaintiff's Request for Production of Documents, Set One. However, these supplemental responses only attempted to address the issues regarding Request Nos. 14 and 16. Further, only Request No. 16 was resolved with the serving of Defendant's supplemental responses. (Id., ¶8, Ex. 4.)

On March 11, 2026, Plaintiff's counsel thanked Defendant's counsel for providing the supplemental responses, but informed Defendant's counsel that they do not resolve all the issues raised in Plaintiff's original meet and confer correspondence. Additionally, Plaintiff's counsel stated that she had not received availability for a telephonic meet and confer, nor had she received a meet and confer correspondence from Defendant in response to Plaintiff's original letter sent on March 2, 2026. (Id., ¶9 Ex. 5.) On April 1, 2026, Plaintiff's counsel received a meet and confer correspondence from Defendant's counsel stating that all of Defendant's responses to Plaintiff's requests for production were proper, and that it would not supplement any further responses besides Nos. 14 and 16, which were already supplemented.

After Plaintiff's counsel reiterated her position in writing, once again, for Defendant's counsel via email, the parties' counsel's telephonically met and conferred to discuss Defendant's discovery responses on April 14, 2026. Further, the parties agreed to continue Plaintiff's Motion to Compel Further Responses deadlines to April 17, 2026. On April 14, 2026, the parties met and conferred telephonically, and Defendant stated that it would let Plaintiff's counsel know what responses, if any, it would supplement, and that Plaintiff's Motion to Compel Further Responses deadline would be continued until April 24, 2026.

On March 17, 2026, Defendant stated that it would not supplement any of the Requests for Production of Documents at issue but would supplement some of its responses to Plaintiff's Special Interrogatories and Requests for Admission, Set One. That same day, Plaintiff's counsel asked if Defendant could provide any supplemental responses by April 27, 2026, and if the parties could extend Plaintiff's Motion to Compel Further deadlines to May 6, 2026. Despite multiple follow-ups from Plaintiff's counsel, Defendant failed to respond to this correspondence and has failed to provide any further supplemental discovery responses. (Id. ¶11, Ex. 7, 8.)

Here, as noted in the Opposition, the initial March 2, 2026 meet and confer letter only addressed responses to RFP Nos. 14 and 16. Supplemental responses were served. However, as noted in the Opposition, Plaintiff did not meet and confer as to requests Nos. 1-9 and 15.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503822	ESTEVEZ VS ALVAREZ	MOTION TO COMPEL ANSWERS TO SPECIAL INTERROGATORIES

CASE #	CASE NAME	HEARING NAME
CVRI2503822	ESTEVEZ VS ALVAREZ	MOTION TO COMPEL ANSWERS TO FORM INTERROGATORIES